

3. Mr Jack argued that any impact on the claimant was entirely irrelevant; ability to pay was the only factor mentioned in the rules, and even that was discretionary. Is it just to award an amount which would remove the vast majority of the claimant's savings, accumulated over a 30 year career and a modest lifestyle?
4. The authorities emphasize time and again the importance of the principle that costs are compensatory, not punitive; but that is almost always in the context where Tribunals have allowed their indignation at the parties' scandalous conduct to persuade them to impose an amount by way of sanction, not compensation. The Tribunal's objective, after all, is overriding; and none of the authorities appear to consider that point.
5. Fortunately, given our conclusion, we have not needed to grapple with these issues.

Financial Judge Forrest

Date: 30 February 2020